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Alaska Record Relief Set-Aside, Sealing & Confidentiality — Agent Training Reference

A complete operational knowledge base for what is — and is not — possible in Alaska, which has NO general expungement statute for adult convictions: the set-aside after a suspended imposition of sentence (AS 12.55.085), narrow sealing for mistaken identity (AS 12.62.180), automatic Courtview non-publication of acquittals/dismissals (AS 22.35.030), the TF-810 process, juvenile sealing, and the pending reform bills.

Prepared for	LegalEase / Expungement.ai — Wilma assistant
Coverage	State of Alaska (trial court of the judicial district; Dept. of Public Safety records)
Primary authorities	AS 12.55.085 (set-aside / SIS); AS 12.62.180 (sealing); AS 22.35.030 & Admin. Rule 40 (Courtview)
Key limitation	NO general adult expungement — confirmed in <i>Journey v. State</i> , 895 P.2d 955 (Alaska 1995)
Document type	Internal training / retrieval reference — not legal advice
Currency	Reflects Alaska law as of the 2025 statutes; reform bills (HB 34 / HB 203) pending, not yet law

VERIFY BEFORE RELYING

Alaska is a **CRITICAL EXCEPTION** and the agent must set expectations honestly. Alaska has **NO** general expungement statute for adult criminal convictions — the Alaska Supreme Court held in *Journey v. State* (1995) that the set-aside law does not authorize expunging a record. What Alaska offers instead is narrower: (1) a court may **SET ASIDE** a conviction after a suspended imposition of sentence (AS 12.55.085(e)), but this does **NOT** seal or destroy the record and a set-aside conviction can still appear on background checks; (2) **SEALING** is available only for records proven beyond a reasonable doubt to result from **MISTAKEN IDENTITY** or **FALSE ACCUSATION** (AS 12.62.180(b)); and (3) records of **ACQUITTALS** and **DISMISSALS** are kept off the public Courtview index automatically after 60 days (AS 22.35.030 / Admin. Rule 40), with Form TF-810 to fix cases that slip through. The agent must never tell an Alaska user their conviction can be “expunged,” and must verify the current law — reform bills are pending but not yet enacted.

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How the agent should use this document

Because Alaska has no general expungement, the agent's job is to identify which of the limited mechanisms (if any) fits, and to manage expectations. Route by disposition: (1) **Acquittal or dismissal** → the record is automatically removed from the public Courtview index 60 days after the disposition (AS 22.35.030); if it is still showing, file Form TF-810. The underlying record is not destroyed but is non-public. (2) **Conviction eligible for a suspended imposition of sentence** → if the person received an SIS and completed probation, the court may SET ASIDE the conviction (AS 12.55.085(e)); explain clearly that this is not expungement and the record persists. (3) **Record from mistaken identity or false accusation** → a sealing request to the agency under AS 12.62.180(b), which requires proof beyond a reasonable doubt. (4) **Juvenile record** → generally sealed at 18 / release of jurisdiction (AS 47.12.300). For an ordinary adult conviction that doesn't fit these, the honest answer is that Alaska currently provides no record clearing, and the only avenue is a governor's PARDON.

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Statutory shorthand used throughout

AS 12.55.085	Suspended Imposition of Sentence (SIS) and SET-ASIDE of a conviction
AS 12.55.085(f)	Offenses for which an SIS / set-aside is NOT available
AS 12.55.078	Suspended ENTRY of judgment (no conviction results) — once per lifetime
AS 12.62.180	SEALING of criminal justice information (mistaken identity / false accusation)
AS 22.35.030	Acquittal / dismissal records kept off the public Courtview website
Admin. Rule 40	Court rule governing what appears on the public Courtview index
AS 47.12.300	Sealing of JUVENILE records
Form TF-810	Request to exclude a case from Courtview (Admin. Rule 40 / AS 22.35.030)
Journey v. State	895 P.2d 955 (Alaska 1995) — set-aside is NOT expungement

1. Eligibility rules (what relief exists)

There is no general expungement. The four real mechanisms, by situation:

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Mechanism 1 — Set-aside after Suspended Imposition of Sentence (AS 12.55.085)

- A court may grant a **Suspended Imposition of Sentence (SIS)** for many misdemeanors and some lower-level felonies, typically for younger or first-time offenders.
- On successful completion of probation, the court **may set aside the conviction** and issue a certificate; the conviction then “ceases to have legal effect” for many purposes.
- **It is NOT expungement.** The record is not sealed or destroyed; a set-aside conviction can still appear on background checks, can be used as a prior for sentence enhancement, and can support license denials.
- **Certain offenses are excluded** from SIS / set-aside under AS 12.55.085(f) (see Section 3).

Mechanism 2 — Sealing for mistaken identity / false accusation (AS 12.62.180)

- A person may ask the agency that maintains the record to SEAL information that, **beyond a reasonable doubt, resulted from mistaken identity or false accusation.**
- This is a high bar and a narrow remedy — it is not a general path for clearing accurate records.
- A person whose information is sealed under this section may deny the existence of the information and of the arrest, charge, conviction, or sentence.

Mechanism 3 — Confidentiality of acquittals / dismissals (AS 22.35.030, Admin. Rule 40)

- The court system may NOT publish on the public Courtview website a criminal case if 60 days have passed and the person was acquitted of all charges, all charges were dismissed (not as part of a Rule 11 plea in another case), some were acquitted and the rest dismissed, or all were dismissed after a suspended entry of judgment (AS 12.55.078).
- Removal is automatic, but cases sometimes slip through — **Form TF-810** asks the court to exclude such a case; **TF-805** removes just the person's name; **TF-800** asks a judge to seal a still-public case or document.
- This makes the record non-public on Courtview; it does not destroy the underlying record.

Mechanism 4 — Juvenile records (AS 47.12.300) and the pardon backstop

- Most juvenile records are sealed within 30 days of the 18th birthday or the court's release of jurisdiction (whichever is later); juveniles charged as adults generally seal five years after completing the sentence.
- For an ordinary adult conviction that fits none of the above, the only avenue is a **governor's pardon (executive clemency)**, which forgives but does not erase.

AGENT GUIDANCE

Lead with honesty: Alaska has no general expungement. Identify which narrow mechanism fits — SIS set-aside, mistaken-identity sealing, Courtview non-publication, or juvenile sealing — and explain what each does and does not do.

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Never describe an SIS set-aside as “expungement”; it leaves a record that can still surface on background checks and as a sentencing prior.

2. Waiting periods

Alaska's mechanisms key off completing probation or a short confidentiality window rather than long post-conviction waits.

Mechanism	Trigger / waiting period	Authority
SIS set-aside	On successful completion of the SIS probation period (clean for the term, often ≈ 1 year+)	AS 12.55.085(e)
Mistaken-identity sealing	No fixed wait; proof beyond a reasonable doubt	AS 12.62.180(b)
Courtview non-publication (acquittal / dismissal)	60 days after acquittal or dismissal	AS 22.35.030
Suspended entry of judgment	On completion; dismissal w/o conviction	AS 12.55.078
Juvenile sealing	30 days after 18th birthday / release of jurisdiction; 5 years if charged as adult	AS 47.12.300

Two timing points matter. The SIS set-aside is available only AFTER the person successfully completes the suspended-imposition probation period without violation — there is no additional multi-year post-completion wait, but the conviction is not set aside until probation is done and the court acts. The Courtview confidentiality rule runs on a simple 60-day clock from the acquittal or dismissal and is meant to be automatic; the TF-810 process exists only to correct cases the system failed to remove. A suspended ENTRY of judgment (AS 12.55.078) is generally available only once in a lifetime, absent clear and convincing evidence of a high likelihood of rehabilitation.

AGENT GUIDANCE

For acquittals/dismissals, the relief should be automatic at 60 days — have the user check Courtview first and only file TF-810 if the case is still showing.

For an SIS, the set-aside comes at successful completion of probation; confirm probation is fully complete before expecting the court to set the conviction aside.

3. Disqualifying offenses / what cannot be cleared

The biggest limitation is structural: **no general expungement exists**, so an ordinary accurate adult conviction generally cannot be cleared at all. Within the narrow mechanisms, additional exclusions apply.

Excluded from SIS / set-aside (AS 12.55.085(f))

- Serious and violent offenses — e.g., murder and other homicide offenses, and offenses where an SIS is statutorily barred.
- **Sexual offenses** and offenses against children, as enumerated.
- Certain **crimes involving domestic violence** and other offenses specifically listed in AS 12.55.085(f).
- Offenses with a mandatory minimum sentence that cannot be suspended.

Limits across the mechanisms

- **Set-aside is not erasure.** Even when granted, the conviction remains on the record, can be a sentencing prior (AS 12.55.155(c)(8)), and may support licensing denials.
- **Sealing (12.62.180) is essentially limited to mistaken identity / false accusation** proven beyond a reasonable doubt — not a route for clearing valid records.
- **Courtview non-publication only hides the case from the public website** — law enforcement and agencies retain the record, and it is limited to acquittals/dismissals.
- **Suspended entry of judgment (12.55.078)** is typically once per lifetime and has its own excluded-offense list.
- **Out-of-state and federal** records are not reachable by Alaska's mechanisms.

VERIFY BEFORE RELYING

The SIS / set-aside exclusion list (AS 12.55.085(f)) and the suspended-entry-of-judgment exclusions (AS 12.55.078(f)) are specific and have been amended; the reform bills (HB 34, HB 203) would, if enacted, add genuine expungement/destruction of set-aside records and change this picture substantially. The agent must verify the current statutes and whether any reform has become law before advising — and must not assume expungement exists.

AGENT GUIDANCE

Screen SIS eligibility against AS 12.55.085(f) — homicide, sex offenses, and certain DV and mandatory-minimum offenses are out.

Be explicit about the ceiling: for a valid adult conviction that isn't SIS-eligible and isn't a mistaken-identity case, Alaska currently offers no clearing beyond a governor's pardon.

4. Case outcome rules

Disposition drives which (if any) mechanism applies. This table is the agent's primary routing logic for Alaska.

Case outcome	Mechanism	Effect	Authority
Acquittal (all charges)	Courtview non-pub.	Off public site at 60 days	AS 22.35.030
All charges dismissed	Courtview non-pub.	Off public site at 60 days	AS 22.35.030
Dismissed after suspended entry of judgment	Courtview non-pub.	Off public site; no conviction	12.55.078 / 22.35.030
Conviction w/ SIS, probation completed	Set-aside	Conviction set aside (NOT erased)	AS 12.55.085(e)
Record from mistaken identity / false accusation	Sealing	Sealed; may deny existence	AS 12.62.180(b)
Juvenile adjudication	Juvenile sealing	Sealed at 18 / release	AS 47.12.300
Ordinary adult conviction (no SIS, accurate)	—	No clearing; pardon only	—

Effect of each remedy differs sharply. A **sealed** record (12.62.180) is confidential and the person may deny its existence and the underlying arrest/charge/conviction. A **set-aside** conviction (12.55.085) is NOT sealed: it remains a record, can still appear on background checks, may be used as a sentencing aggravator, and the Alaska courts have described the post-SIS dismissal as “in the nature of a pardon, not a declaration of innocence.” **Courtview non-publication** (22.35.030) keeps an acquittal/dismissal off the public website but does not destroy the record held by agencies. The agent must convey these differences precisely.

AGENT GUIDANCE

Match remedy to disposition: acquittal/dismissal → Courtview non-publication (verify it happened); SIS conviction → set-aside (explain it's not erasure); mistaken identity → sealing.

Only a sealed record (or a non-public Courtview entry) drops off public view; a set-aside conviction does not, so don't overpromise.

5. Required forms

There is no “petition for expungement” in Alaska. The relevant filings are the Alaska Court System (TF) forms and statutory requests.

Form / filing	Use
Form TF-810	Request to exclude a case from Courtview (Admin. Rule 40 / AS 22.35.030) — acquittals, dismissals, completed SIS set-aside
Form TF-805	Request to remove only the person's NAME from the public index
Form TF-800	Request asking a judge to seal or make confidential a still-public case or document
SIS / set-aside	Motion in the criminal case for set-aside on completion of the SIS (AS 12.55.085(e)); the court issues a certificate
AS 12.62.180(b) request	Written request to the agency head to seal mistaken-identity / false-accusation records

For an acquittal or dismissal that is still appearing on Courtview, Form TF-810 is the workhorse: it asks the court to exclude the case from the public index, and the petitioner shows that 60 days have passed since the acquittal or dismissal and attaches proof. For a conviction resolved through an SIS, the set-aside is sought by motion in the underlying criminal case once probation is complete; the court issues a certificate that the person can provide to the Department of Public Safety and the clerk. Mistaken-identity sealing under AS 12.62.180(b) is a written request to the agency that holds the record, not a court petition.

AGENT GUIDANCE

For acquittals/dismissals use TF-810 (whole case), TF-805 (name only), or TF-800 (ask a judge to seal) — pick the one that matches the need. There is no expungement petition.

For an SIS, the set-aside is a motion in the existing criminal case; for mistaken identity, it's a written sealing request to the record-holding agency.

6. Filing instructions

- 1 Identify the disposition.** Acquittal/dismissal, SIS conviction, mistaken-identity record, or juvenile — this determines the mechanism (or that none applies).
- 2 Check Courtview first.** For an acquittal or dismissal, look up the case; if 60 days have passed and it is no longer on the public index, no filing is needed.
- 3 If still public (acquittal/dismissal):** complete Form TF-810 (or TF-805 / TF-800 as appropriate), attach proof of the acquittal/dismissal and that 60 days have elapsed, and file with the trial court where the case was filed.
- 4 If an SIS conviction:** after successfully completing probation, file a motion in the criminal case asking the court to set aside the conviction under AS 12.55.085(e); obtain the court's certificate and provide copies to the Department of Public Safety and the clerk.
- 5 If mistaken identity / false accusation:** submit a written request under AS 12.62.180(b) to the head of the agency that maintains the record, with evidence establishing the error beyond a reasonable doubt.
- 6 If juvenile:** confirm the record is sealed under AS 47.12.300; if not, raise it with the juvenile court.
- 7 If none fits:** advise that Alaska provides no general clearing for the conviction and that a governor's pardon is the only avenue; provide accurate expectations rather than a false path.

AGENT GUIDANCE

File TF-810 with the trial court that handled the case; it's a short request with proof attached, not an adversarial petition.

For an SIS set-aside, the motion goes into the EXISTING criminal case once probation is complete — there's no separate new action.

7. Court-specific quirks

- **No general expungement.** The defining feature of Alaska — *Journey v. State* confirms the set-aside law does not authorize expunging a record.
- **Set-aside ≠ sealing.** An SIS set-aside leaves the record intact and visible on background checks; it is “in the nature of a pardon, not a declaration of innocence.”
- **Automatic Courtview removal.** Acquittals and dismissals come off the public website at 60 days by rule — the relief is automatic, with TF-810 only as a backstop.
- **Set-aside cases also leave Courtview.** A completed SIS set-aside where all other charges resolved favorably is also removed from the public index under Admin. Rule 40(a)(13).
- **Marijuana and minor-alcohol carve-outs.** Admin. Rule 40 also keeps certain old small-amount-marijuana convictions and some under-21 alcohol offenses off the public index.
- **Sealing is essentially mistaken-identity only.** AS 12.62.180(b) is not a general remedy.
- **Suspended entry of judgment (12.55.078)** avoids a conviction entirely but is usually a once-per-lifetime option.
- **Reform pending.** HB 34 / HB 203 would add real expungement/destruction of set-aside records — track whether either becomes law.

AGENT GUIDANCE

The single most important thing to get right in Alaska is not overpromising: distinguish non-publication and set-aside (record persists) from true sealing/expungement (which generally doesn't exist here). Watch the reform bills — if HB 34 or HB 203 is enacted, the set-aside-to-expungement picture changes and this reference will need updating.

8. Fee information

Item	Amount	Note
Form TF-810 (Courtview exclusion)	Typically \$0	Administrative request to the court
SIS set-aside motion	Court motion fees may apply	Filed in the existing criminal case
AS 12.62.180(b) sealing request	Agency-dependent	Written request to the record-holding agency
DPS criminal history record	DPS fee	To confirm what records exist
Attorney fees (if represented)	Varies	Not required; legal-aid clinics assist

Cost is generally low because the relief is limited. Removing an acquittal or dismissal from the public Courtview index via Form TF-810 is an administrative request and typically carries no fee. An SIS set-aside is handled within the existing criminal case. A mistaken-identity sealing request under AS 12.62.180(b) goes to the agency that holds the record. The main out-of-pocket cost for most people is obtaining the Department of Public Safety criminal history record to see what exists, and any attorney fees if they choose representation. Because the remedies are narrow, the practical question is usually eligibility, not cost.

AGENT GUIDANCE

Reassure users that the Courtview exclusion (TF-810) is generally free — the limiting factor in Alaska is what relief exists, not the fee.

Direct users to pull the DPS criminal history first so they know exactly what records they're dealing with.

9. Criminal history (DPS / Courtview) request process

Confirming the record establishes the disposition (which decides the mechanism) and whether a case is still appearing on the public index.

A. Public case index — Courtview

- Courtview is the Alaska Court System's public online case index; acquittals/dismissals (and completed SIS set-asides where other charges resolved favorably) should drop off automatically after 60 days under Admin. Rule 40 / AS 22.35.030.
- If a case that should have been removed is still showing, Form TF-810 asks the court to exclude it.

B. Statewide history — Department of Public Safety

- The Alaska Department of Public Safety maintains the state criminal history; a person may request their own record to confirm convictions, dispositions, and whether a set-aside certificate has been recorded.
- A set-aside certificate from the court (AS 12.55.085(e)) should be provided to DPS and the clerk.

C. Federal — FBI Identity History Summary

- For records that may extend beyond Alaska, the FBI fingerprint-based Identity History Summary is the federal equivalent; Alaska's mechanisms reach Alaska records only.

VERIFY BEFORE RELYING

Courtview removal practice, DPS request methods and fees, and the TF-form versions can change, and the reform bills could alter the record-destruction rules. The agent should verify the current DPS request process, the current TF forms, and the status of any reform legislation at the time of advising.

AGENT GUIDANCE

Frame the DPS criminal history and a Courtview lookup as step one — together they show the disposition and whether the public index already reflects the relief, which decides whether any filing is even needed.

10. Sample filings and completed examples

Because Alaska has no expungement petition, the examples below show the actual filings used. Names, dates, and identifiers are fictional and illustrative.

Example A — Form TF-810 (exclude an acquittal/dismissal from Courtview)

ALASKA COURT SYSTEM – TRIAL COURT, THIRD JUDICIAL DISTRICT
AT ANCHORAGE
STATE OF ALASKA v. ANDRE L. CARTER Case No. 3AN-23-01234CR

REQUEST TO EXCLUDE CASE FROM COURTVIEW

(Admin. Rule 40(a) / AS 22.35.030) – Form TF-810

1. I am the defendant in the case above.
2. The case ended in my favor (check one):
☒ All charges were DISMISSED on 11/15/2023.
☐ I was ACQUITTED of all charges on _____.
☐ Charges dismissed after a suspended entry of judgment (AS 12.55.078).

3. More than 60 days have passed since that disposition.

4. Proof of the dismissal/acquittal is attached.

I ask the court to exclude this case from the public Courtview index under Administrative Rule 40(a) / AS 22.35.030.

Date: 06/02/2026 Signature: Andre L. Carter

Examples B, C & D — Other mechanisms

B. SET-ASIDE AFTER SIS (AS 12.55.085(e)) – MOTION IN THE CASE:
'Defendant received a Suspended Imposition of Sentence and has successfully completed probation. Defendant moves the Court to SET ASIDE the conviction under AS 12.55.085(e) and to issue a certificate.' (NOTE: this does NOT seal or expunge; the record remains and may appear on background checks.)

C. SEALING – MISTAKEN IDENTITY / FALSE ACCUSATION (AS 12.62.180(b)):

A written request to the head of the agency holding the record, showing beyond a reasonable doubt that the record resulted from mistaken identity or false accusation. If sealed, the person may deny the existence of the information.

D. NO MECHANISM FITS:

For an accurate adult conviction that is not SIS-eligible and is not a mistaken-identity case, Alaska provides no clearing; the only avenue is a GOVERNOR'S PARDON (executive clemency), which forgives but does not erase.

What the relief does

A granted TF-810 removes the acquittal/dismissal from the public Courtview index (the underlying record persists with agencies). A set-aside certificate under AS 12.55.085(e) sets aside the conviction so it ceases to have legal effect for many purposes, but does not seal or destroy it. A sealing under AS 12.62.180 makes the information confidential and lets the person deny its existence. None of these is general expungement, which

Alaska does not currently provide for adult convictions.

This reference is an internal training and retrieval aid for the Wilma assistant. It summarizes Alaska's limited record-relief mechanisms and is not legal advice. Alaska has NO general adult expungement statute (*Journey v. State*, 895 P.2d 955); relief is limited to SIS set-asides (AS 12.55.085), mistaken-identity sealing (AS 12.62.180), Courtview non-publication of acquittals/dismissals (AS 22.35.030 / Admin. Rule 40), and juvenile sealing (AS 47.12.300). Reform bills (HB 34 / HB 203) are pending but not yet law. The agent must verify the current statutes, the TF forms, DPS processes, and the status of reform before relying on any rule here, and must never tell a user an adult conviction can be “expunged” in Alaska.